

HARDISTY v. LAGUNA GOLD MORTGAGE

19CV44041

DEFENDANT’S MOTION TO VACATE ARBITRATION AWARD

This is a breach of contract action involving satisfaction of encumbrances as part of a bankruptcy proceeding. The dispute was referred to arbitration. Before the Court is a defense motion to vacate the arbitration award. There is no opposition.

Pursuant to Calaveras County Superior Court Local Rule 3.3.7 (adopted 1/1/18), “all matters noticed for the Law & Motion calendar shall include” specified language in the Notice of Motion, and “failure to include this language in the notice may be a basis for the Court to deny the motion.” Based on defendant’s failure to include the required language, the motion is **DENIED**, without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to relevant statutes.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal order is required.

In re MATTER OF ZAMORA
19PR8129 (Related to 16CV41649)

RESPONDENT'S MOTION TO QUASH

This is a special probate proceeding to enjoin non-party Clyde Clapp from selling property in which decedent owns an equitable interest. Before the Court is a motion by respondent to “quash personal jurisdiction” and effectively block petitioner’s efforts to serve respondent with a preliminary injunction. Although the Notice for this motion fails to comply with Calaveras County Superior Court Local Rule 3.3.7 (adopted 1/1/18), this Court elects to proceed given the time-sensitive nature of this anomalous proceeding.

In November of 2007, Gus Zamora (father), Dave Zamora (son) and Clyde Clapp (Gus’ close friend) pooled together their respective resources to acquire APN 073-044-006, commonly known as 1521 Country View Drive in Valley Springs. [Because of the common last names, the court will refer to the parties by their first names in this ruling without intending any disrespect.] Each party contributed approximately \$44,000.00 to the down payment, with the balance of the \$415,000 purchase price covered by a loan from Indymac. Over the years, the parties contributed different efforts to the joint venture, and eventually a second rental dwelling was completed on the property. Shortly after the second dwelling was rented, a disagreement arose between the parties regarding contributions and sweat equity, prompting Gus to file a lawsuit against Clyde (16CV41649). Given to his advanced years (91) and diminishing health, Gus was represented throughout most of the case by his son Dave, in the latter’s capacity as a guardian *ad litem*.

The dispute was tried to this Court in April of 2021. Following witness testimony and the admission of nearly 200 exhibits, this Court reached the following material conclusions:

- A partnership was established between Gus, Dave, and Clyde to acquire and improve the subject property as an investment vehicle;
- The partnership was not impliedly terminated after Gus and Dave stopped making financial contributions to the ongoing operations;
- Clyde breached his fiduciary duties to the other partners (Gus and Dave) by:
 - Taking title to the property in his name alone (even though Clyde contended that the decision was mutual related to Gus’ credit issues);
 - Refinancing the property in his own name (even though Clyde contended that refinancing to reduce the interest rate was beneficial for all); and
 - Renting the second dwelling and not sharing that profit with Gus or Dave.
- The statute of limitations was equitably tolled;
- Clyde’s actions constituted elder financial abuse;